

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-07

PKDC, LLC
Complainant,

v.

COSCO Shipping Lines Co., Ltd.
Respondent

JOINT STATUS REPORT

Pursuant to 46 C.F.R. § 502.141(h), PKDC, LLC. (PKDC), and Respondent COSCO Shipping lines Co., Ltd. (“COSCO”) (PKDC, collectively with COSCO, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and proposed discovery schedule:

The Parties have already exchanged the initial disclosures required by 46 C.F.R. § 502.141(b). The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions) and 502.145 (i.e., no more than 50 written interrogatories), respectively. Consistent with the Presiding Officer’s May 15, 2025 Initial Order in this case, the Parties will confer concerning a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case and will be working together on a mutually

acceptable stipulation for filing in this matter. Pursuant to 46 C.F.R. § 502.64(a), the parties have each held a preliminary conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”).

The Parties propose the below schedule, which provides for a discovery schedule in the 150-day¹ time period set by 46 C.F.R. § 502.141(g):

EVENT	PROPOSED DEADLINE
Parties may serve initial discovery requests	August 15, 2025
Substantial completion of productions of documents and ESI in response to initial RFPs; depositions may begin.	October 8, 2025
Disclosure of Complainant’s expert reports, if any	October 20, 2025
Last day parties may serve supplemental discovery requests	October 22, 2025
Complete depositions of fact witnesses	October 31 2025
Disclosure of Respondent’s rebuttal expert reports, if any	November 19, 2025
Close of discovery	November 24, 2025
Complainant’s initial brief, proposed findings of fact, and appendix	January 5, 2026
Respondent’s opposition brief, responses to Complainant’s proposed findings of fact, proposed findings of fact, and appendix	February 7, 2026
Complainant’s reply and responses to Respondent’s proposed findings of fact	February 21, 2026

¹ The parties note that while they are optimistic that discovery can be completed within the 150-day period set forth herein, discovery in matters such as this can often require additional time to complete. Should additional time become necessary, the parties intend to file a timely request for more time pursuant to the Commission’s rules of practice.

Dated July 28, 2025

Respectfully Submitted

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